

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 21-009

**Amendments to Titles 5 and 6 of the Chickasaw Nation Code
(Rules and Procedures for the Courts of the Chickasaw Nation)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has granted jurisdiction to a District Court for the Chickasaw Nation, and

WHEREAS, the Legislature desires to establish all necessary rules and procedures for the District Court.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5 of the Chickasaw Nation Code, the other sections Title 5 to remain the same (additions are shown in red, deletions are stricken through):

SECTION 5-105.7

**WHEN MORE THAN ONE JUSTICE IS DISQUALIFIED;
SPECIAL JUSTICES.**

A. If more than one (1) Justice is disqualified from hearing in a case, the Chief Justice of the Supreme Court shall designate by court order, pursuant to rules promulgated by the Supreme Court, ~~Governor shall submit to the Legislature, within five (5) days of the disqualification of more than one (1) Justice, for its advice and consent, the names of sufficient numbers of persons who are licensed to practice law before the Court and who are not employees of, or under contract with, the Chickasaw Nation in any capacity~~ citizens to act as Special Justices in the case. ~~Care shall be taken by the Governor to recommend names which are not subject to allegations of bias or prejudice in the matter.~~

B. ~~The Legislature shall approve or disapprove the Special Justices within ten (10) days of the submission of the names by the Governor.~~

~~C. Special Justices shall be subject to disqualification in the same manner as other Justices.~~

SECTION 5-202.1**JUDGES OF THE DISTRICT COURT.**

The District Court shall consist of a Presiding Judge, and Special Judges as may be appointed according to law. ~~The appointment of Presiding Judge, where appropriate shall be made by the Supreme Court.~~

SECTION 5-202.3516**DISTRICT COURT ADDRESS; TELEPHONE NUMBER.**

The address and telephone number of the Chickasaw District Court, are as follows:

Chickasaw Nation District Court
P.O. Box 129
Ada, Oklahoma 74821-0129
(580) 235-0279

SECTION 5-604**JUDGE'S DISABILITY.**

A. If by reason of death, sickness or other disability, the Judge before whom a jury trial has commenced is unable to proceed with the trial, the Chief Justice of the Supreme Court shall designate by court order, pursuant to rules promulgated by the Supreme Court, a person who is licensed to practice law before the Court and who is not an employee of, or under contract with, the Chickasaw Nation in any capacity to act as Special Judge in the case. ~~any other Judge of the Chickasaw Nation Court of Indian Offenses may, upon certifying that he has familiarized himself with the record of the trial, proceed with the trial.~~

B. If by reason of death, sickness or other disability, the Judge before whom the defendant has been tried is unable to perform the required duties of a Judge after the verdict or finding of guilt, the Chief Justice of the Supreme Court shall designate by court order, pursuant to rules promulgated by the Supreme Court, a person who is licensed to practice law before the Court and who is not an employee of, or under contract with, the Chickasaw Nation in any capacity to act as Special Judge in the case. ~~any other Judge of the Chickasaw Nation Court System may perform those duties unless such Judge feels he cannot fairly perform those duties in which case a new trial may be granted.~~ A new trial shall not be granted if all that remains to be done is the sentencing of a defendant.

SECTION 5-1301.1**SCOPE.**

This Chapter governs evidentiary questions in all proceedings in the Court, ~~sof the Chickasaw Nation~~ whether civil, criminal, juvenile, or otherwise, except as may be otherwise specifically provided by Chickasaw law.

SECTION 5-1305.2

LAWYER-CLIENT PRIVILEGE.

A. **Definitions.** As used in this Section:

2. A "Representative of the Client" or words to that effect means **is** one having authority to obtain professional legal services, or to act on advice rendered pursuant thereto, on behalf of the Client.

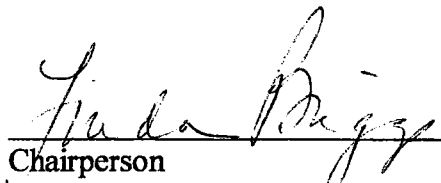
BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendment to Title 6 of the Chickasaw Nation Code, the other sections in Title 6 to remain the same (additions are shown in red, deletions are stricken through):

6. DOMESTIC RELATIONS AND FAMILIES"

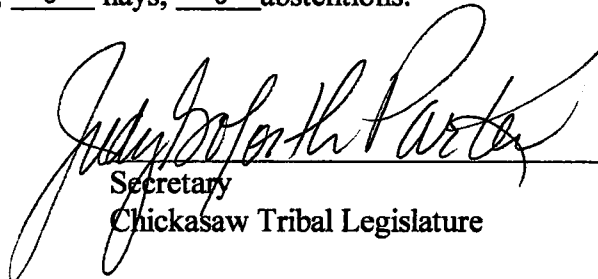
CHAPTER 2

INDIAN CHILD WELFARE ~~ADOPTION~~"

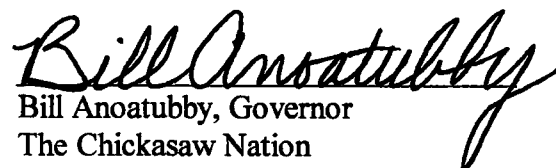
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on February 20, 2004, by a vote of 12 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:  Date: FEB 23 2004
Bill Anoatubby, Governor
The Chickasaw Nation

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 21-009
Amendments to Titles 5 and 6 of the Chickasaw Nation Code
(Rules and Procedures for the Courts of the Chickasaw Nation)

Explanation: This resolution amends language of Title 5 regarding the selection of Special Justices and Special Judges. This resolution also amends a section number, a chapter title and definitions in Titles 5 and 6.

Requested By: Tim Colbert, Chairman
Court Development Ad Hoc Committee

Presented By: Tim Colbert, Chairman
Court Development Ad Hoc Committee